

SENATE No. 1974

The Commonwealth of Massachusetts

PRESENTED BY:

James B. Eldridge

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act aligning the long-term capital gains tax rate with the short-term capital gains tax rate.

PETITION OF:

NAME:

James B. Eldridge

DISTRICT/ADDRESS:

Middlesex and Worcester

SENATE No. 1974

By Mr. Eldridge, a petition (accompanied by bill, Senate, No. 1974) of James B. Eldridge for legislation to align the long-term capital gains tax rate with the short-term capital gains tax rate. Revenue.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act aligning the long-term capital gains tax rate with the short-term capital gains tax rate.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 5G of chapter 29 of the General Laws, as amended by section 19 of
2 chapter 28 of the Acts of 2023, is hereby further amended by inserting after the words
3 “Constitution of the Commonwealth”:- and the alignment surtax as defined in section 1 of
4 chapter 62.

5 SECTION 2. Section 1 of chapter 62 of the General Laws, as appearing in the 2022
6 Official Edition, is hereby amended by inserting after the definition of “Commissioner” the
7 following new definition:-

8 (b) “Alignment surtax”, a tax imposed at a rate of 3.5 per cent on Part C taxable income.

9 SECTION 3. Section 4 of said chapter 62, as so appearing, is hereby amended by
10 inserting after the words “paragraph (b)”, in line 33, the following words:- plus the alignment
11 surtax.